

25STCV20003 25STCV20003

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-07

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Case Number: 25STCV20003 Hearing Date: August 7, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 7, 2026 TRIAL DATE:

Not Set

CASE: Glenda Patricia Larios, et al. v. Seonghyeon

Lee

CASE NO.: 25STCV20003

MOTION

TO SUBSTITUTE SUCCESSOR IN INTEREST FOR DECEDENT MARIA DELMA TORRES, OR IN THE
ALTERNATIVE, TO DISMISS DECEDENT'S CLAIMS

MOVING PARTY: Plaintiffs Glenda Patricia Larios, Maria Delma Torres,
and Clara Del Carmen Cruz

RESPONDING PARTY: None

CASE

HISTORY:

07/07/2025:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action for personal injury arising out of an automobile collision.

Plaintiffs move to substitute successor in interest for Decedent Maria Delma Torres.

TENTATIVE RULING:

Plaintiff's motion to substitute successor in interest is MOOT.

DISCUSSION:

Plaintiff Maria Delma Torres' counsel states that she passed away in May 2024. Plaintiffs seek an order: (1) setting a date certain by which any person claiming to be the successor in interest of decedent Maria Delma Torres must appear and file a declaration meeting the requirements of Code of Civil Procedure section 377.32 in order to be substituted as plaintiff in this action in place of decedent; and (2) in the event no qualifying successor in interest appears and timely files the required declaration, dismissing without prejudice the individual claims asserted in the name of Maria Delma Torres, with the action to proceed as to the remaining Plaintiffs.

Motion to Dismiss

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410.) "The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions": (1) service is not made within two years or (2) the action is not brought to trial within three years. (Code Civ Proc., § 583.420.)

In ruling on a motion to dismiss, the court may consider the court file, diligence in seeking effective service of process, the extent to which parties engaged in any settlement negotiations,

diligence in pursuing discovery, nature and complexity of the case, pendency of other litigation based on common facts, nature of any extensions of time or other delay, condition of the court's calendar, whether the interests of justice are best served by dismissal, and any other facts or circumstances relevant to fair determination. (Cal. Rules of Court, rule 3.1342(e).)

Motion to Substitute

CCP section 377.31 provides that

"[o]n motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.)

CCP section 377.32 provides that a

person who seeks to commence such an action as the decedent's successor in interest must file an affidavit or declaration providing the following:

1.

The
decedent's name

2.

The
date and place of the decedent's death

3.

"No
proceeding is now pending in California for administration of the decedent's estate."

4.

If
the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest

5.

Either
of the following, as appropriate, with facts in support thereof:

A.

"The

affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding."

B.

"The

affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding."

6.

"No

other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding."

7.

"The

affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct."

(Code

Civ. Proc., § 377.32(a).) A certified copy of the decedent's death certificate must also be attached to the affidavit or declaration. (Id., § 377.32(c).)

Here, the

Court notes that Plaintiffs have filed another motion on July 31, 2026, requesting Glenda Patricia Larios to be substituted as Decedent's successor in interest. As such, the request sought in this motion is MOOT.

IT IS SO ORDERED.

Dated: August 7, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.